

that a copy of the current petition, proposed transfer agreement and disclosure form, annuity contract, and other documents be served along with the notice. Ins. Code § 10134(g) provides that “Interested parties” means, with respect to a structured settlement agreement, the payee, the payee’s attorney, any beneficiary irrevocably designated under the annuity contract to receive payments following the payee’s death, the annuity issuer, the structured settlement obligor, and any other party who has continuing rights or obligations under the structured settlement agreement. The matter has been properly noticed.

The Court must determine whether the transfer is “fair and reasonable and in the best interest of the payee, taking into account the welfare and support of his or her dependents.” Section 10137(a). Payee seeks to transfer:

- 24 monthly life contingent payments of \$139.99 each, increasing annually by 4% beginning February 3, 2027 and ending January 3, 2029,
- 60 monthly life contingent payments of \$437.02 each, increasing annually by 4% beginning February 3, 2029 and ending January 3, 2034, and
- 108 monthly life contingent payments of \$2,212.53 each, increasing annually by 4% beginning February 3, 2034 and ending January 3, 2043.

In exchange, Payee will get \$52,651. Mr. Whipp is 48 years old and divorced. He has no minor children and is unemployed. He states in his declaration that he receives \$2,824.89 per month from his annuity, however Exhibit F shows that he presently receives \$3,500 per month. He does not have any court-ordered child support obligations. He has completed eight prior transactions transferring his annuity. He states that he is experiencing financial hardship. If approved, he will use the funds to pay fines that stem from a cultivation case and complete home repairs.

The Court intends to inquire of Mr. Whipp at the time of hearing regarding his understanding of the terms of the agreement in addition to the discrepancy in what he currently receives monthly from his annuity. The Court may deny or defer ruling on the petition if the Court believes that the payee does not fully understand the proposed transaction and that independent legal or financial advice should be obtained, pursuant to Insurance Code 10139.5(b)(14). Petitioner did not provide a proposed Order as required by Local Rule of Court 5.17(D). Petitioner is to prepare the Order. **An appearance by Mr. Whipp is necessary on today’s calendar.**

IN RE: JAIMEZ PARADA

CASE NUMBER: 26CV-0210313

Tentative Ruling on Petition for Change of Name: Petitioner Isaac Jaimez Parada seeks to change his name to Isaac Jaimez Parada. The change will make Jaimez Petitioner’s middle name instead of part of his last name. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates, and close the file.

IN RE: LABRASH

CASE NUMBER: 26CV-0210308

Tentative Ruling on Petition for Change of Name: Petitioner Melissa Sue Luce seeks to change her name to Melissa Sue LaBrash. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated and the file closed upon the processing of the Decree Changing Name.

LVNV FUNDING LLC VS. PEREDO

CASE NUMBER: 25CV-0208454

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on May 14, 2026 to all parties and counsel for failure to timely file a Mandatory Settlement Conference Statement